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CASE #	CASE NAME	HEARING NAME
CVRI2505717	DYNAMARK MONITORING, INC. vs AMERICOM CENTRAL STATION, INC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Summary of Ruling:

The Court grants all Plaintiff's requests for judicial notice but gives such evidence the weight it deserves.

The Court grants Plaintiff's motion for attorney fees at the reasonably reduced amount of \$7,650.00.

The Court denies Plaintiff's motion for costs in full.

Factual / Procedural Context:

On October 6, 2025, Plaintiff Dynamark Monitoring, Inc. dba TriStar Monitoring, LLC ("Plaintiff") filed a Complaint against Defendant Americom Central Station, Inc. for breach of written contract.

On December 2, 2025, the Clerk of the Court entered default against Defendant based on Plaintiff's request.

On March 11, 2026, the Court granted Plaintiff's motion for default judgment and entered default judgment against Defendant.

On March 17, 2026, Defendant moved to set aside and vacate its default and default judgment under C.C.P. § 473, arguing that Plaintiff failed to serve Defendant with the Summons, Complaint, or Request for Entry of Default, or alternatively, that Defendant's failure to respond was a result of mistake, inadvertence, and excusable neglect.

On June 10, 2026, the Court denied Defendant's motion to set aside and vacate the default and default judgment, and awarded Plaintiff "reasonable attorneys' fees incurred in opposing such motion, in an amount to be established by declaration or noticed motion."

Plaintiff now moves for an award of \$49,291.75 in attorney fees using the lodestar method, along with \$2,557.00 in costs, for a total award of \$51,848.75.

In opposition, Defendant argues the Court should reduce the requested award because counsel's hourly rates for expended time are unreasonably excessive, and

numerous time entries are unrelated to the Court's June 10, 2026 order. Defendant further asserts that the Court did not award Plaintiff any costs.

In reply, Plaintiff maintains that the attorney fees and costs are reasonable.

Request for Judicial Notice

Plaintiff seeks judicial notice of several tentative rulings and minute orders in unrelated cases that were decided in Riverside Superior Court to support its argument that counsel's hourly rate is commensurate with those previously awarded in other courtrooms. The Court grants the requests for judicial notice. But gives such evidence no weight because the cited cases involve different issues at varying levels of complexity and are therefore irrelevant to this Court's disposition of this motion.

Analysis

I. Attorney Fees

Attorney fees are awarded when authorized by contract, statute, or law. (C.C.P. § 1033.5(a)(10).) Here, the Court awarded Plaintiff "reasonable attorneys' fees incurred in opposing" Defendant's motion to set aside and vacate default and default judgment. (Ruling, dated June 10, 2026.)

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records and Declarations of Julie Roback and Michelle Harrell, counsel spent:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Katherine Balatbat, Partner	0.7	\$900.00	\$630.00
Julie Roback, Senior Counsel	39.0	\$650.00	\$25,350.00
Paralegals	14.45	\$275.00	\$3,973.75
Michelle Harrell, Partner	8.9	\$645.00	\$5,740.50
Henry Longley, Associate	25.9	\$525.00	\$13,597.50
TOTAL	88.95		\$49,291.75

A. Out-of-State Attorneys

“[N]o person may recover compensation for practicing law ‘in California’ unless the person was a member of the State Bar or admitted pro hac vice at the time the services were performed, or the legal services fall within an exception.” (*Golba v. Dick’s Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1262, citing *Birbrower, Montalbano, Condon & Frank v. Superior Court* (1998) 17 Cal.4th 119, 127; Bus. & Prof. Code, § 6125.) The out-of-state attorney’s services are not compensable solely by hiring local counsel and entering a fee agreement, where the local counsel was not a partner, employee, representative or member of the out-of-state attorney’s firm. (*Id.* at 1268-1270.)

Here, Attorneys Harrell and Longley (“Taft Attorneys”) are out-of-state attorneys who are not members of the California Bar, and hence, according to *Birbrower*, would not be entitled to compensation for legal services performed “in California” in connection with this case, which would be severed from compensable attorney’s fees. (*Birbrower, supra*, 17 Cal.4th at 137 [the contract law of severability in Civ. Code, § 1599 allows illegal portions of the fee agreement pertaining to the unlawful practice of law in California to be severed from those parts which are recoverable].) Taft Attorneys were not admitted pro hac vice in this case until May 7, 2026. Accordingly, none of the time that they incurred prior to their pro hac vice appointment is compensable.

Further, there is no evidence that Taft Attorney’s expended time is reasonable. The records should detail crucial information as to the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) Here, it is unclear how counsel came up with the numbers for hours spent on specific tasks, as they only state the number of hours spent each month, and include one paragraph with a description of several of the tasks performed in relation to the opposition. This is essentially block billing, which “occurs when ‘a block of time [is assigned] to multiple tasks rather than itemizing the time spent on each task.’” (*Mountjoy v. Bank of America, N.A.* (2016) 245 Cal.App.4th 266, 279.) “Block billing presents a particular problem for a court seeking to allocate between reimbursable and unreimbursable fees, and trial courts are granted discretion ‘to penalize [block billing]

when the practice prevents them from discerning which tasks are compensable and which are not.’ ” (*In re Marriage of Nassimi* (2016) 3 Cal.App.5th 667, 695.)

Further, the tasks that Taft Attorneys list are duplicative and unnecessary. Specifically, Taft Attorneys contend that they incurred time in performing legal research as to service and defaults, assisted the California attorneys with the preparation of the opposition, and worked on the pro hac vice applications. (Harrell, ¶ 15.) However, the California Attorneys also billed for conducting research and the pro hac vice applications. (Roback Decl., Exh. B.) This is double-billing. Thus, the Court strikes all of Attorney Harrell and Longley’s time in full.

B. Hourly Rates

Counsel’s hourly rate does not appear to be reasonable for Riverside County. Counsel for this case are located in Los Angeles County and Southfield, Michigan. Plaintiff makes no showing that it could not obtain local counsel, and therefore, is entitled to out-of-town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 [plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel].)

Further, counsel has not argued how “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed” justifies an hourly rate of \$525.00 to \$900.00. (*PLCM Group, supra*, 72 Cal.App.4th at 708.) The fees in this case were incurred in opposing a motion to set aside default and vacate default judgment, which only involved litigating the basic issue as to whether personal service was valid. Accordingly, the Court reduces the requested hourly rates.

C. Expended Time

There were at least five timekeepers in this case. A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) Here, there was one out-of-state partner, one partner, one senior counsel, one out-of-state associate attorney, and an undefined number of paralegals. There is no indication that the opposition was so complex as to require the higher billing rates of two partners and senior counsel. Accordingly, the Court reduces the hourly rates to that of an associate attorney.

The Court also declines to compensate the time that counsel incurred in Taft Attorneys’ pro hac vice applications, including an ex parte application to advance the hearings on the pro hac vice applications, because they were not reasonably incurred. Neither the pro hac vice applications nor the ex parte application were opposed. Further, the pro hac vice applications were not directly related to the opposition. Specifically, in the Complaint filed on October 6, 2025, Taft Attorneys appear in the caption with the statement, “*Pro hac vice forthcoming.” As such, counsel knew of their need to file pro hac vice applications for Taft Attorneys at least six months prior to their

ex parte application. Thus, the Court strikes 8.7 hours from Attorney Roback's billing, and 9.5 hours from paralegals' billing.

A review of the billing entries also reveals that counsel billed for clerical and administrative tasks, including internal communications with staff and Taft Attorneys, and checking the status of motions and rulings online. Several of these entries were block-billed and redacted, such that the Court is unable to determine whether they were reasonably incurred (e.g., Attorney Roback's billing entries on March 20, 2026). Accordingly, the Court strikes 3.5 hours from Attorney Roback's billing, 0.45 hour from paralegals' billing, and 0.7 hours from Attorney Balatbat's billing.

Counsel also billed for time spent on issues unrelated to the opposition, such as settlement and appeals. Thus, the Court strikes 1.2 hours from Attorney Roback's billing.

Counsel also billed 18.3 hours for filing the instant fee motion. There is no reason why this fee motion should take more than 4.0 hours to draft and defend. Thus, the Court strikes 11.8 hours from Attorney Roback's billing and 1.5 hours from paralegals' billing.

As for the remaining time entries, they are reasonable under the circumstances. Defendants' remaining challenges for unnecessary/overbilled tasks, etc. are not supported. As such, the Court awards the following:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Katherine Balatbat, Partner	0.0	\$500.00	\$0.00
Julie Roback, Senior Counsel	13.8	\$500.00	\$6,900.00
Paralegals	3.0	\$250.00	\$750.00
Michelle Harrell, Partner	0.0	\$500.00	\$0.00
Henry Longley, Associate	0.0	\$500.00	\$0.00
TOTAL	16.8		\$7,650.00

II. Costs

Under C.C.P. § 473(b), the court is required to direct an attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties only where relief from default judgment is granted based on an attorney's affidavit of fault.

That is not the case here, as the Court denied Defendant's underlying motion for relief from default judgment. Accordingly, the Court, in its discretion, awarded only attorney fees to Plaintiff for prevailing on its opposition to Defendant's motion to set aside default and vacate default judgment.

In its Reply, Plaintiff contends that it is entitled to recover post-judgment costs as a prevailing party. However, Plaintiff cites to no legal authority to support its contention

that defending the validity of an underlying judgment (via opposing a motion to set aside default and vacate default judgment) constitutes post-judgment enforcement.

Plaintiff has failed to provide any legal support for its request for costs. Because the Court expressly did not award costs in its order, the Plaintiff's request is denied for costs in full.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505836	MILLER vs CORONA-NORCO UNIFIED SCHOOL DISTRICT	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling:

Summary of Ruling:

The Court grants motion to redact minor child's identifying information.

The Court sustains the demurrer with 30 days leave to amend.

Factual / Procedural Context:

Plaintiff Cindy Miller contends that on 7/9/25, another student pushed Plaintiff's minor child, C.M., causing her to fall and strike her head on a classroom wobble stool. Defendant failed to notify Plaintiff or refer the child for a medical evaluation. Plaintiff expressly disclaims that she is asserting causes of action on behalf of CM. The operative pleading is the Second Amended Complaint (SAC) filed on 5/5/26 for general negligence.

Plaintiff moves to redact any identifying information of CM, since CM is not a named party.

Defendant does not oppose the redaction, but complains about the lack of timely notice of the motion.

Defendant demurs to the negligence claim on the grounds it fails to state facts sufficient and is uncertain. Defendant argues that Plaintiff cites to state a statutory basis for liability. It argues that Government Code section 815 precludes any liability. It contends that the SAC is uncertain because she asserts she is not bringing a claim on behalf of CM, but bases the claim on injuries suffered by CM and the duties owed to CM.